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{
  "category": "definitions",
  "question": "Is Microsoft an Affiliate of GitHub under these Terms?",
  "question_type": "single-clause",
  "answerable": true,
  "ground_truth_answer": "Yes. An 'Affiliate' is any entity that controls, is controlled by, or shares common control with a party, where control means owning more than 50% or having the right to direct its management. The Terms say Microsoft is an Affiliate of GitHub.",
  "gold_clause": "A. Definitions → (4) Affiliate — 'Affiliate' means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where 'control' means having more than fifty percent (50%) ownership or the right to direct the management of the entity. For the avoidance of doubt, Microsoft is an Affiliate of GitHub."
},
{
  "category": "account_terms",
  "question": "What's the minimum age to use GitHub, and what happens to underage users?",
  "question_type": "multi-clause",
  "answerable": true,
  "ground_truth_answer": "You must be 13 or older. GitHub doesn't allow users under 13, and will close the account of anyone it finds is under 13. If you live outside the US, your country's minimum age may be higher and you must follow your local laws.",
  "gold_clause": "B. Account Terms → B.3 Account Requirements — You must be age 13 or older... we do not permit any Users under 13 on our Service. If we learn of any User under the age of 13, we will terminate that User's Account immediately."
},
{
  "category": "acceptable_use",
  "question": "What laws and rules must I follow when using GitHub?",
  "question_type": "single-clause",
  "answerable": true,
  "ground_truth_answer": "Your use must follow all applicable laws, including copyright, trademark, and export/sanctions laws. You're responsible for staying compliant, and you must never break GitHub's Acceptable Use Policies or Community Guidelines."
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"gold\_clause": "C. Acceptable Use — Your use of the Website and Service must not violate any applicable laws, including copyright or trademark laws, export control or sanctions laws, or other laws in your jurisdiction... You agree that you will not under any circumstances violate our Acceptable Use Policies or Community Guidelines."

},

{

"category": "data\_usage",

"question": "If a company scrapes public GitHub content to train a commercial AI, what does GitHub require?",

"question\_type": "multi-clause",

"answerable": true,

"ground\_truth\_answer": "If you use automated means to scrape public content to train a commercial AI, you waive any of your own terms that would block GitHub from doing the same to your public data, and you agree not to block or retaliate against that access. This doesn't apply to purely academic research, or if your product had fewer than 700 million monthly active users in the prior month.",

"gold\_clause": "D. User-Generated Content → D.9 Access Reciprocity — By using automated means to access... any publicly accessible Content from the Service for the purpose of developing or training any commercially available... 'Commercial AI System', you hereby waive any and all policies, terms, conditions, or contractual provisions... This Section D.9 does not apply to Access solely for the purpose of academic research or if... the number of monthly active users of the products or services... is less than 700 million in the preceding calendar month."

},

{

"category": "copyright",

"question": "What does GitHub do to repeat copyright infringers?",

"question\_type": "single-clause",

"answerable": true,

"ground\_truth\_answer": "GitHub closes the accounts of repeat infringers under its Copyright Infringement and DMCA Policy.",

"gold\_clause": "F. Copyright Infringement and DMCA Policy — We will terminate the Accounts of repeat infringers of this policy."

},

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{
  "category": "additional_terms",
  "question": "Do some GitHub features have extra terms beyond the main ToS?",
  "question_type": "single-clause",
  "answerable": true,
  "ground_truth_answer": "Yes. Some features have extra terms in the GitHub Additional Product Terms, and by using the services you agree to those too.",
  "gold_clause": "I. GitHub Additional Product Terms — Some Service features may be subject to additional terms specific to that feature or product as set forth in the GitHub Additional Product Terms. By accessing or using the Services, you also agree to the GitHub Additional Product Terms."
},
{
  "category": "beta_previews",
  "question": "If I join a private Beta Preview, what are my confidentiality duties and what rights does GitHub get over my feedback?",
  "question_type": "multi-clause",
  "answerable": true,
  "ground_truth_answer": "Non-public Beta Preview info is GitHub's confidential information, even if not marked as such. You can only use it to test the Beta, must protect it with reasonable care, and can't share it (with some exceptions, like info that becomes public on its own or that you already knew). Separately, any feedback you give GitHub is licensed to GitHub for free, worldwide, forever, to use and commercialize.",
  "gold_clause": "K. Beta Previews → K.2 Confidentiality + K.3 Feedback — any non-public Beta Preview information we give you... will be considered GitHub's confidential information... You agree to only use such Confidential Information for the express purpose of testing and evaluating the Beta Preview... GitHub will have a royalty-free, fully paid-up, worldwide, transferable, sub-licensable, irrevocable and perpetual license to implement, use, modify, commercially exploit and/or incorporate the Feedback."
},
{
  "category": "indemnification",
  "question": "What am I agreeing to if a dispute or legal claim involves GitHub?",
  "question_type": "multi-clause",

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"answerable": true,
"ground_truth_answer": "If you have a dispute with other users, you release GitHub from any claims related to it. You also agree to defend and cover GitHub's costs (including legal fees) for claims arising from your use of the service or your violation of the Terms, as long as GitHub tells you about the claim, lets you control the defense, and you cover the costs.",
"gold_clause": "Q. Release and Indemnification — If you have a dispute with one or more Users, you agree to release GitHub from any and all claims, demands and damages... You agree to indemnify us, defend us, and hold us harmless from and against any and all claims, liabilities, and expenses, including attorneys' fees, arising out of your use of the Website and the Service, including but not limited to your violation of this Agreement.",
},
{
"category": "changes_to_terms",
"question": "How much notice does GitHub give before major changes to the Terms?",
"question_type": "single-clause",
"answerable": true,
"ground_truth_answer": "At least 30 days before major changes (like price increases), GitHub notifies you by posting on the Website or emailing your account's primary email. Using the service after that means you accept the new Terms.",
"gold_clause": "R. Changes to These Terms — We will notify our Users of material changes to this Agreement, such as price increases, at least 30 days prior to the change taking effect by posting a notice on our Website or sending email to the primary email address specified in your GitHub account.",
},
{
"category": "governing_law",
"question": "Which laws govern the Terms, and where are disputes handled?",
"question_type": "single-clause",
"answerable": true,
"ground_truth_answer": "The Terms are governed by US federal law and California law. Disputes generally go to the courts in San Francisco, California. One exception: injunctive relief for a Section D.9 violation can be brought anywhere.",
"gold_clause": "S. Miscellaneous → S.1 Governing Law — this Agreement between you and GitHub and any access to or use of the Website or the Service are governed by the federal
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laws of the United States of America and the laws of the State of California, without regard to conflict of law provisions... You and GitHub agree to submit to the exclusive jurisdiction and venue of the courts located in the City and County of San Francisco, California."

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},  
{  
  "category": "refund/billing",  
  "question": "How much does a paid GitHub plan cost per month?",  
  "question_type": "unanswerable",  
  "answerable": false,  
  "ground_truth_answer": "The Terms don't list prices. They point to github.com/pricing, but  
the actual amounts aren't in the Terms of Service.",  
  "gold_clause": null  
},  
{  
  "category": "data_usage",  
  "question": "What encryption does GitHub use to secure private repos?",  
  "question_type": "unanswerable",  
  "answerable": false,  
  "ground_truth_answer": "The Terms don't name any encryption standard. Section E says  
GitHub protects private repo content with reasonable care, but doesn't specify a method.",  
  "gold_clause": null  
}
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